

Abhishek Bhatti And Ors vs State Of H.P. & Anr on 17 October, 2024

(2024:HHC:9847) IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. MMO No. 1304 of 2022 Reserved on: 30.08.2024 Date of Decision: 17.10.2024.

Abhishek Bhatti and Ors

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Versus

State of H.P. & Anr.

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Coram

Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting?1 No For the Petitioners : Mr. Ashok Sharma, Senior Advocate, with Ms. Anubhuti Sharma, Advocate.

For the Respondents : Mr. Ajit Sharma, Deputy Advocate General for respondent No.1/State.

Mr. Harish Chabra, Advocate, for respondent No.2.

Rakesh Kainthla, Judge The petitioners have filed the present petition for quashing FIR No. 21 of 2022, dated 05.08.2022 registered with Women Police Station Nahan, District Sirmour, H.P. for the commission of offences punishable under Sections 498A, 406 Whether reporters of Local Papers may be allowed to see the judgment? Yes.

(2024:HHC:9847) and 506 read with Section 34 of the Indian Penal Code (hereinafter referred to as IPC) and the consequential proceedings arising out of the FIR.

2. Briefly stated, the facts giving rise to the present petition are that the informant made a complaint to the police asserting that she was married to Abhishek Bhatti on 28.06.2021 as per Hindu Rites and Customs. Her husband and parents-in-

law were not happy with the Stridhan provided to her. They used to taunt her for bringing insufficient dowry and ornaments. Her husband used to consume various drugs. He suspected the informant's character and made false allegations against her.

She was turned out of her matrimonial home several times. The informant resided with her husband and parents-in-law but they were greedy. They did not get the marriage registered. She was turned out of her matrimonial home on 26.06.2022. Her stridhan was kept by her husband and

mother-in-law. They demanded 20,00,000/- from the informant's parents and threatened to kill her. They also told her not to return without the money or else she would be killed by administering poison to her. The police registered the FIR and conducted the investigation.

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3. Being aggrieved from the registration of the FIR, the petitioners have filed the present petition asserting that the allegations in the FIR are perverse, cryptic, erroneous and false.

The allegations were made to harass and put pressure upon the petitioners. The informant never wanted to have a settled married life and she always looked for excuses to arm-twist the petitioners. The informant demanded money from her husband and 22,00,000/- were transferred by her husband to her account. The informant married the petitioner No.1 to grab his money. The allegations in the FIR do not disclose the commission of any cognizable offence. The investigation is being carried out by the investigating agency without jurisdiction. No specific instances were provided by the informant in the FIR. The contents of the FIR are nothing but a bundle of lies. The continuation of the proceedings would amount to abuse of the process of the Court. The allegations are vague and do not constitute the commission of any offence. False allegations were made against the petitioners without any details of date, time and place. Therefore, it was prayed that the present petition be allowed and the FIR be quashed.

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4. The petition was opposed by the State of H.P. by filing a reply making preliminary submissions regarding lack of maintainability. The contents of the petition were denied on merits. It was asserted that the FIR was registered on the complaint of the informant. The police conducted the investigation fairly and filed the chargesheet before the competent Court of law. The allegations in the FIR constitute the commission of cognizable offence and the informant was turned out of her matrimonial home when she failed to meet the demand of dowry. Therefore, it was prayed that the present petition be dismissed.

5. A separate reply was filed by the informant giving her version of the incident. She also took preliminary objections regarding lack of maintainability and the petitioners having not approached the Court with clean hands. It was asserted the FIR is not an encyclopedia of all the events. FIR cannot be quashed on the ground that all particulars were not given. The details of the incident can surface during the investigation. The petitioners had repeatedly harassed the informant. It was denied that the informant had taken 22,00,000/- from her husband or she had married petitioner No.1 to grab his money. The informant had (2024:HHC:9847) also filed a divorce petition which is pending adjudication before the Family Court at Derabassi. Therefore, it was prayed that the present petition be dismissed.

6. Separate rejoinders denying the contents of the replies and affirming those of the petition were filed.

7. I have heard Mr Ashok Sharma, learned Senior Advocate assisted by Ms Anubhuti Sharma, learned counsel for the petitioners, Mr Ajit Sharma, learned Deputy Advocate General for respondent No.1/State and Mr Harish Chhabra, learned counsel for respondent No.2/informant.

8. Mr. Ashok Sharma, learned Senior Counsel for the petitioners submitted that the allegations in the FIR are vague.

They do not constitute the commission of a cognizable offence.

No FIR could have been lodged based on such vague allegations.

He relied upon the judgments of Hon'ble Supreme in Abhishek vs. State of Madhya Pradesh 2023 SCC Online SC 1083 and Kahkashan Kausar alias Sonam versus State of Bihar (2022) 6 SCC 599 in support of his submission.

9. Mr. Ajit Sharma, learned Deputy Advocate General for the respondent/State submitted that the allegations in the FIR (2024:HHC:9847) constitute the commission of cognizable offence. The police fairly conducted the investigation and filed a chargesheet before the Court. The Court is seized of the matter and the matter should be left to the learned Trial Court to adjudicate upon. He prayed that the present petition be dismissed.

10. Mr. Harish Chhabra, learned counsel for the respondent/informant submitted that the allegations in the FIR constitute the commission of a cognisable offence. The FIR is not an encyclopedia of all the events. The facts were elucidated during the investigation and the chargesheet contains all the details of the incident. Therefore, he prayed that the present petition be dismissed. He relied upon the judgments of this Court in Jagdish Kumar versus State of H.P. 2024 HHC 5184, Rupali Devi versus State of U.P. Cr. Appeal No. 71 of 2012 decided on 09.04.2019, Nitika vs. Yadwinder Singh & Ors Cr. Appeal No. 1096 of 2019 decided on 23.07.2019, Priti Kumari vs. State of Bihar & Ors Criminal Appeal No. 1387 of 2019 decided on 13.09.2019, Ruhi vs. Anees Ahmad & Ors Criminal Appeal No. 7 of 2020 decided on 06.01.2020, Priyanka Jaswal versus State of Jharkhand and others Criminal Appeal No. 2344 of 2024 decided on 30.04.2024, Satvinder Kaur vs. State of Delhi Criminal Appeal No. 1031 of 1999, Rasiklal (2024:HHC:9847) Dalpatram Thakkar versus State of Gujrat in Criminal Appeal No. 2041 of 2009 decided on 06.11.2019 and R.A.H Siguran versus Shankare Gowda @ Shankara and another in Criminal Appeal No. 1439 of 2017 decided on 18.08.2017 in support of his submission.

11. I have given considerable thought to the submissions made at the bar and have gone through the records carefully.

12. The parameters for exercising jurisdiction under Section 482 of Cr.P.C. were laid down by the Hon'ble Supreme Court in A.M. Mohan v. State, 2024 SCC OnLine SC 339, wherein it was observed:

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"9. The law with regard to the exercise of jurisdiction under Section 482 of Cr. P.C. to quash complaints and criminal proceedings has been succinctly summarized by this Court in the case of *Indian Oil Corporation v. NEPC India Limited* (2006) 6 SCC 736: 2006 INSC 452 after considering the earlier precedents. It will be apposite to refer to the following observations of this Court in the said case, which read thus:

"12. The principles relating to the exercise of jurisdiction under Section 482 of the Code of Criminal Procedure to quash complaints and criminal proceedings have been stated and reiterated by this Court in several decisions. To mention a few-- *Madhavrao Jiwajirao Scindia v. Sambhajirao Chandrojirao Angre* [(1988) 1 SCC 692: 1988 SCC (Cri) 234], *State of Haryana v. Bhajan Lal* [1992 Supp (1) SCC 335: 1992 SCC (Cri) 426], *Rupan Deol Bajaj v. Kanwar Pal Singh Gill* [(1995) 6 SCC 194: 1995 SCC (Cri) 1059], *Central Bureau of Investigation v. Duncans Agro Industries (2024:HHC:9847) Ltd.* [(1996) 5 SCC 591: 1996 SCC (Cri) 1045], *State of Bihar v. Rajendra Agrawalla* [(1996) 8 SCC 164: 1996 SCC (Cri) 628], *Rajesh Bajaj v. State NCT of Delhi* [(1999) 3 SCC 259: 1999 SCC (Cri) 401], *Medchl Chemicals & Pharma (P) Ltd. v. Biological E. Ltd.* [(2000) 3 SCC 269: 2000 SCC (Cri) 615], *Hridaya Ranjan Prasad Verma v. State of Bihar* [(2000) 4 SCC 168: 2000 SCC (Cri) 786], *M. Krishnan v. Vijay Singh* [(2001) 8 SCC 645: 2002 SCC (Cri) 19] and *Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haque* [(2005) 1 SCC 122: 2005 SCC (Cri) 283]. The principles, relevant to our purpose are:

(i) A complaint can be quashed where the allegations made in the complaint, even if they are taken at their face value and accepted in their entirety, do not prima facie constitute any offence or make out the case alleged against the accused.

For this purpose, the complaint has to be examined as a whole, but without examining the merits of the allegations. Neither a detailed inquiry nor a meticulous analysis of the material nor an assessment of the reliability or genuineness of the allegations in the complaint is warranted while examining prayer for quashing a complaint.

(ii) A complaint may also be quashed where it is a clear abuse of the process of the court, as when the criminal proceeding is found to have been initiated with mala fides/malice for wreaking vengeance or to cause harm, or where the allegations are absurd and inherently improbable.

(iii) The power to quash shall not, however, be used to stifle or scuttle a legitimate prosecution. The power should be used sparingly and with abundant caution.

(iv) The complaint is not required to verbatim reproduce the legal ingredients of the offence alleged. If the necessary factual foundation is laid in the complaint, merely on the ground that a few (2024:HHC:9847) ingredients have not been stated in detail, the proceedings should not be quashed. Quashing of the complaint is warranted only where the complaint is so bereft of even the basic facts which are necessary for making out the offence. (v.) A given set of facts may make out: (a) purely a civil wrong; (b) purely a criminal offence; or (c) a civil wrong as also a criminal offence. A

commercial transaction or a contractual dispute, apart from furnishing a cause of action for seeking remedy in civil law, may also involve a criminal offence. As the nature and scope of a civil proceeding are different from a criminal proceeding, the mere fact that the complaint relates to a commercial transaction or breach of contract, for which a civil remedy is available or has been availed, is not by itself a ground to quash the criminal proceedings. The test is whether the allegations in the complaint disclose a criminal offence or not."

13. Similar is the judgment in *Maneesha Yadav v. State of U.P.*, 2024 SCC OnLine SC 643, wherein it was held: -

"12. We may gainfully refer to the following observations of this Court in the case of *State of Haryana v. Bhajan Lal* 1992 Supp (1) SCC 335: 1990 INSC 363:

"102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of justice, though it may not be (2024:HHC:9847) possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.

(1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused. (2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

(4) Where the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and (2024:HHC:9847) continuance of the proceedings and/or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party. (7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

103. We also give a note of caution to the effect that the power of quashing a criminal proceeding should be exercised very sparingly and with circumspection and that too in the rarest of rare cases; that the court will not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint and that the extraordinary or inherent powers do not confer an arbitrary jurisdiction on the court to act according to its whim or caprice."

14. A similar view was taken in *Abhishek v. State of M.P.* 2023 SCC OnLine SC 1083 wherein it was observed:

12. The contours of the power to quash criminal proceedings under Section 482 Cr. P.C. are well defined.

In *V. Ravi Kumar v. State represented by Inspector of Police, District Crime Branch, Salem, Tamil Nadu* [(2019) 14 SCC 568], this Court affirmed that where an accused seeks quashing of the FIR, invoking the inherent jurisdiction of the High Court, it is wholly impermissible for the High Court to enter into the factual arena to adjudge the correctness of the allegations in the complaint. In *Neeharika Infrastructure (P). Ltd. v. State of Maharashtra* [Criminal Appeal No. 330 of 2021, decided on 13.04.2021], a 3-Judge Bench of this Court elaborately considered the scope and extent of the power under (2024:HHC:9847) Section 482 Cr. P.C. It was observed that the power of quashing should be exercised sparingly, with circumspection and in the rarest of rare cases, such standard not being confused with the norm formulated in the context of the death penalty. It was further observed that while examining the FIR/complaint, quashing of which is sought, the Court cannot embark upon an enquiry as to the reliability or genuineness or otherwise of the allegations made therein, but if the Court thinks fit, regard being had to the parameters of quashing and the self- restraint imposed by law, and more particularly, the parameters laid down by this Court in *R.P. Kapur v. State of Punjab* (AIR 1960 SC 866) and *State of Haryana v. Bhajan Lal* [(1992) Supp (1) SCC 335], the Court would have jurisdiction to quash the FIR/complaint.

15. It is undisputed that the police have filed a charge sheet in the present case. It was laid down by the Hon'ble Supreme Court in *Shaileshbhai Ranchhodbhai Patel & Anr vs State of Gujarat* Criminal Appeal No.1884/2013 decided on 28.08.2024 that the contents of the FIR and the charge sheet have to be read together to determine whether any offence is made out or not. It was observed:

"8. On the authority of the aforesaid decisions, the law seems to be well-settled that the High Court under Section 482, Cr. PC. retains the power to quash an FIR, even after charge sheet under Section 173(2) thereof is filed, provided a satisfaction is reached, inter alia, that either the FIR and the charge sheet read together, even accepted as true and correct without rebuttal, does not disclose commission of any offence or that continuation of proceedings arising out of such an FIR would in fact be an abuse of the process (2024:HHC:9847) of law as well as of the Court given the peculiar circumstances of each particular case."

16. The present petition has to be considered as per the parameters laid down by the Hon'ble Supreme Court.

17. It was submitted that Himachal Police do not have jurisdiction because the informant was residing at Derabassi and not at Nahan. This submission cannot be accepted. The police recorded the statement of the informant under Section 161 of Cr.P.C. in which she gave her address as the resident of Village and P.O. Sataun, Tehsil Kamrau, District Sirmaur which shows that she was residing within the jurisdiction of Police Station, Nahan. It was laid down by the Hon'ble Supreme Court in *Rupali Devi v. State of U.P.*, (2019) 5 SCC 384: (2019) 2 SCC (Cri) 558 that the place where the victim is residing will have jurisdiction to hear and entertain complaint regarding her harassment. It was observed at page 389-90:

"14. "Cruelty" which is the crux of the offence under Section 498-A IPC is defined in Black's Law Dictionary to mean 'The intentional and malicious infliction of mental or physical suffering on a living creature, esp. a human; abusive treatment; outrage (abuse, inhuman treatment, indignity)'. Cruelty can be both physical and mental cruelty. The impact on the mental health of the wife by overt acts on the part of the husband or his relatives; the mental stress and trauma of being driven away from the (2024:HHC:9847) matrimonial home and her helplessness to go back to the same home for fear of being ill-treated are aspects that cannot be ignored while understanding the meaning of the expression "cruelty" appearing in Section 498-A of the Penal Code. The emotional distress or psychological effect on the wife, if not the physical injury, is bound to continue to traumatise the wife even after she leaves the matrimonial home and takes shelter at the parental home. Even if the acts of physical cruelty committed in the matrimonial house may have ceased and such acts do not occur at the parental home, there can be no doubt that the mental trauma and the psychological distress caused by the acts of the husband including verbal exchanges, if any, that had compelled the wife to leave the matrimonial home and take shelter with her parents would continue to persist at the parental home. Mental cruelty borne out of physical cruelty or abusive and humiliating verbal exchanges would continue in the parental home even though there may not be any overt act of physical cruelty at such a place.

15. The Protection of Women from Domestic Violence Act, as the object behind its enactment would indicate, is to provide a civil remedy to victims of domestic violence

as against the remedy in criminal law which is what is provided under Section 498-A of the Penal Code. The definition of "domestic violence" in the Protection of Women from Domestic Violence Act, 2005 contemplates harm or injuries that endanger the health, safety, life, limb or well-being, whether mental or physical, as well as emotional abuse. The said definition would certainly, for reasons stated above, have a close connection with Explanations (a) & (b) to Section 498-A of the Penal Code which defines cruelty. The provisions contained in Section 498-A of the Penal Code, undoubtedly, encompass both mental as well as the physical well-being of the wife. Even the silence of the wife may have an underlying element of emotional distress and mental agony. Her sufferings at the parental home though may be directly attributable to the (2024:HHC:9847) commission of acts of cruelty by the husband at the matrimonial home would, undoubtedly, be the consequences of the acts committed at the matrimonial home. Such consequences, by itself, would amount to distinct offences committed at the parental home where she has taken shelter. The adverse effects on the mental health in the parental home though on account of the acts committed in the matrimonial home would, in our considered view, amount to the commission of cruelty within the meaning of Section 498-A at the parental home. The consequences of the cruelty committed at the matrimonial home result in repeated offences being committed at the parental home. This is the kind of offence contemplated under Section 179 CrPC which would squarely be applicable to the present case as an answer to the question raised.

16. We, therefore, hold that the courts at the place where the wife takes shelter after leaving or being driven away from the matrimonial home on account of acts of cruelty committed by the husband or his relatives, would, dependent on the factual situation, also have jurisdiction to entertain a complaint alleging commission of offences under Section 498-A of the Penal Code."

18. This judgment was followed in *Nitika v. Yadwinder Singh*, (2020) 17 SCC 484: (2021) 3 SCC (Cri) 265: 2019 SCC OnLine SC 1406 wherein it was observed at page 487:

"7. What this Court has laid down in para 16 above clinches the issues. It was held by this Court that at the place where the wife takes shelter after leaving or being driven away from the matrimonial home on account of acts of cruelty committed by the husband or his relatives, would, dependent on the factual situation, also have jurisdiction to entertain a complaint alleging (2024:HHC:9847) commission of offences under Section 498-A of the Penal Code."

19. Hence, the submission that the police had no territorial jurisdiction to register the FIR cannot be accepted. In any case, it was laid down by the Hon'ble Supreme Court in *Satvinder Kaur v. State (Govt. of NCT of Delhi)*, (1999) 8 SCC 728 that SHO has a statutory authority to investigate any cognizable offence and the investigation cannot be quashed on the ground of lack of territorial jurisdiction. It was observed:-

"8. In our view, the submission made by the learned counsel for the appellant requires to be accepted. The limited question is whether the High Court was justified in quashing the FIR on the ground that the Delhi Police Station did not have territorial jurisdiction to investigate the offence. From the discussion made by the learned Judge, it appears that the learned Judge has considered the provisions applicable to criminal trials. The High Court arrived at the conclusion by appreciating the allegations made by the parties that the SHO, Police Station Paschim Vihar, New Delhi did not having territorial jurisdiction to entertain and investigate the FIR lodged by the appellant because the alleged dowry items were entrusted to the respondent at Patiala and that the alleged cause of action for the offence punishable under Section 498-A IPC arose at Patiala. In our view, the findings given by the High Court are, on the face of it, illegal and erroneous because:

(1) The SHO has statutory authority under Section 156 of the Criminal Procedure Code to investigate any cognizable case for which an FIR is lodged.

(2024:HHC:9847) (2) At the stage of investigation, there is no question of interference under Section 482 of the Criminal Procedure Code on the ground that the investigating officer has no territorial jurisdiction.

(3) After the investigation is over, if the investigating officer arrives at the conclusion that the cause of action for lodging the FIR has not arisen within his territorial jurisdiction, then he is required to submit a report accordingly under Section 170 of the Criminal Procedure Code and to forward the case to the Magistrate empowered to take cognizance of the offence.

9. This would be clear from the following discussion. Section 156 of the Criminal Procedure Code empowers the police officer to investigate any cognizable offence. It reads as under:

"156. Police officer's power to investigate cognizable cases.--(1) Any officer in charge of a police station may, without the order of a Magistrate, investigate any cognizable case which a court having jurisdiction over the local area within the limits of such station would have the power to enquire into or try under the provisions of Chapter XIII.

(2) No proceeding of a police officer in any such case shall at any stage be called into question on the ground that the case was one which such officer was not empowered under this section to investigate.

(3) Any Magistrate empowered under Section 190 may order such an investigation as above-

mentioned."

10. It is true that territorial jurisdiction also is prescribed under sub-section (1) to the extent that the officer can investigate any cognizable case in which a court having jurisdiction over the local area within the (2024:HHC:9847) limits of such police station would have power to enquire into or try under the provisions of Chapter XIII. However, sub-section (2) makes the position clear by providing that no proceeding of a police officer in any such case shall at any stage be called into question on the ground that the case was one which such officer was not empowered to investigate. After the investigation is completed, the result of such investigation is required to be submitted as provided under Sections 168, 169 and 170. Section 170 specifically provides that if, upon an investigation, it appears to the officer in charge of the police station that there is sufficient evidence or reasonable ground of suspicion to justify the forwarding of the accused to a Magistrate, such officer shall forward the accused under custody to a Magistrate empowered to take cognizance of the offence upon a police report and to try the accused or commit for trial. Further, if the investigating officer arrives at the conclusion that the crime was not committed within the territorial jurisdiction of the police station, then the FIR can be forwarded to the police station having jurisdiction over the area in which the crime was committed. But this would not mean that in a case that requires investigation, the police officer can refuse to record the FIR and/or investigate it.

11. Chapter XIII of the Code provides for "jurisdiction of the criminal courts in enquiries and trials". It is to be stated that under the said chapter there are various provisions which empower the court for enquiry or trial of a criminal case and that there is no absolute prohibition that the offence committed beyond the local territorial jurisdiction cannot be investigated, enquired or tried. This would be clear by referring to Sections 177 to 188. For our purpose, it would suffice to refer only to Sections 177 and 178 which are as under:

"177. Ordinary place of enquiry and trial.--Every offence shall ordinarily be enquired into and tried by (2024:HHC:9847) a court within whose local jurisdiction it was committed.

178. Place of enquiry or trial.--(a) When it is uncertain in which of several local areas an offence was committed, or

(b) where an offence is committed partly in one local area and partly in another, or

(c) where an offence is continuing one, and continues to be committed in more local areas than one, or

(d) where it consists of several acts done in different local areas, it may be enquired into or tried by a court having jurisdiction over any of such local areas."

12. A reading of the aforesaid sections would make it clear that Section 177 provides for an "ordinary" place of enquiry or trial. Section 178, inter alia, provides for place of enquiry or trial when it is uncertain in which of several local areas an offence was committed or where the offence was committed partly in one local area and partly in another and where it consisted of several acts done in different local areas, it could be enquired into or tried by a court having jurisdiction over any of

such local areas. Hence, at the stage of investigation, it cannot be held that the SHO does not have territorial jurisdiction to investigate the crime.

13. This Court in *State of W.B. v. S.N. Basak* [AIR 1963 SC 447 : (1963) 2 SCR 52] dealt with a similar contention wherein the High Court had held that the statutory powers of investigation given to the police under Chapter XIV were not available in respect of an offence triable under the West Bengal Criminal Law Amendment (Special Courts) Act, 1949 and hence the investigation was without jurisdiction. Reversing the said finding, it was held thus:

(2024:HHC:9847) "The powers of investigation into cognizable offences are contained in Chapter XIV of the Code of Criminal Procedure. Section 154 which is in that chapter deals with information on cognizable offences and Section 156 with the investigation into such offences under these sections the police have the statutory right to investigate into the circumstances of any alleged cognizable offence without authority from a Magistrate and this statutory power of the police to investigate cannot be interfered with by the exercise of power under Section 439 or the inherent power of the court under Section 561-A of the Criminal Procedure Code. As to the powers of the judiciary in regard to the statutory right of the police to investigate, the Privy Council in *King Emperor v. Khwaja Nazir Ahmad* [(1944) 71 IA 203, 212: AIR 1945 PC 18] (IA at p. 212) observed as follows--

"The functions of the judiciary and the police are complementary, not overlapping and the combination of individual liberty with a due observance of law and order is only to be obtained by leaving each to exercise its own function, always, of course, subject to the right of the court to intervene in an appropriate case when moved under Section 491 of the Criminal Procedure Code to give directions in the nature of habeas corpus. In such a case as the present, however, the court's functions begin when a charge is preferred before it, and not until then. It has sometimes been thought that Section 561-A has given increased powers to the court which it did not possess before that section was enacted. But this is not so. The section gives no new powers, it only provides that (2024:HHC:9847) those which the court already inherently possesses shall be preserved and inserted, as their Lordships think, lest it should be considered that the only powers possessed by the court are those expressly conferred by the Criminal Procedure Code and that no inherent power had survived the passing of that Act.' With this interpretation, which has been put on the statutory duties and powers of the police and of the powers of the Court, we are in accord. The High Court was in error therefore in interfering with the powers of the police in investigating into the offence which was alleged in the information sent to the officer in charge of the police station."

14. Further, the legal position is well settled that if an offence is disclosed the court will not normally interfere with an investigation into the case and will permit an investigation into the offence alleged to be completed. If the FIR, prima facie, discloses the commission of an offence, the court does not normally stop the

investigation, for, to do so would be to trench upon the lawful power of the police to investigate into cognizable offences. [State of W.B. v. Swapan Kumar Guha, (1982) 1 SCC 561: 1982 SCC (Cri) 283] It is also settled by a long course of decisions of this Court that for the purpose of exercising its power under Section 482 CrPC to quash an FIR or a complaint, the High Court would have to proceed entirely on the basis of the allegations made in the complaint or the documents accompanying the same per se; it has no jurisdiction to examine the correctness or otherwise of the allegations. [Pratibha Rani v. Suraj Kumar, (1985) 2 SCC 370, 395: 1985 SCC (Cri) 180]

15. Hence, in the present case, the High Court committed a grave error in accepting the contention of the respondent that the investigating officer had no jurisdiction to investigate the matters on the alleged (2024:HHC:9847) ground that no part of the offence was committed within the territorial jurisdiction of the police station at Delhi. The appreciation of the evidence is the function of the courts when seized of the matter. At the stage of the investigation, the material collected by an investigating officer cannot be judicially scrutinized for arriving at a conclusion that the police station officer of a particular police station would not have territorial jurisdiction. In any case, it has to be stated that in view of Section 178(c) of the Criminal Procedure Code, when it is uncertain in which of the several local areas an offence was committed, or where it consists of several acts done in different local areas, the said offence can be enquired into or tried by a court having jurisdiction over any of such local areas. Therefore, to say at the stage of the investigation that the SHO, Police Station Paschim Vihar, New Delhi did not have territorial jurisdiction, is on the face of it, illegal and erroneous.

That apart, Section 156(2) contains an embargo that no proceeding of a police officer shall be challenged on the ground that he has no territorial power to investigate. The High Court completely overlooked the said embargo when it entertained the petition of Respondent 2 on the ground of want of territorial jurisdiction.

20. It was held in *Rasiklal Dalpatram Thakkar v. State of Gujarat*, (2010) 1 SCC 1 that once an investigation is commenced under Section 156(1), it cannot be interrupted on the ground that the Police Officer was not empowered. It was observed: -

24. From the aforesaid provisions it is quite clear that a police officer in charge of a police station can, without the order of a Magistrate, investigate any cognizable offence which a court having jurisdiction over such (2024:HHC:9847) police station can inquire into or try under Chapter III of the Code. Sub-section (2) of Section 156 ensures that once an investigation is commenced under sub-section (1), the same is not interrupted on the ground that the police officer was not empowered under the section to investigate. It is in the nature of a "savings clause" in respect of investigations undertaken in respect of cognizable offences. In addition to the powers vested in a Magistrate empowered under Section 190 CrPC to order an investigation under sub-section (1) of Section 202 CrPC, sub-section (3) of Section 156 also

empowers such Magistrate to order an investigation on a complaint filed before him.

26. In the instant case, the stage contemplated under Section 181(4) CrPC has not yet been reached. Prior to taking cognizance of the complaint filed by the Bank, the learned Chief Metropolitan Magistrate, Ahmedabad had directed an inquiry under Section 156(3) CrPC and as it appears, a final report was submitted by the investigating agency entrusted with the investigation stating that since the alleged transactions had taken place within the territorial limits of the city of Mumbai, no cause of action had arisen in the State of Gujarat and therefore, the investigation should be transferred to the police agency in Mumbai. There seems to be little doubt that the Economic Offences Wing, State CID (Crime), which had been entrusted with the investigation, had upon initial inquiries recommended that the investigation be transferred to the police agency of Mumbai.

27. In our view, both the trial court as well as the Bombay High Court had correctly interpreted the provisions of Section 156 CrPC to hold that it was not within the jurisdiction of the investigating agency to refrain itself from holding a proper and complete investigation merely upon arriving at a conclusion that the offences had been committed beyond its territorial jurisdiction.

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28. A glance at the material before the Magistrate would indicate that the major part of the loan transaction had, in fact, taken place in the State of Gujarat and that having regard to the provisions of sub-section (2) of Section 156 CrPC, the proceedings of the investigation could not be questioned on the ground of jurisdiction of the officer to conduct such investigation. It was open to the learned Magistrate to direct an investigation under Section 156(3) CrPC without taking cognizance of the complaint and where an investigation is undertaken at the instance of the Magistrate, a police officer empowered under sub-section (1) of Section 156 is bound, except in specific and specially exceptional cases, to conduct such an investigation even if he was of the view that he did not have jurisdiction to investigate the matter.

29. Having regard to the law in existence today, we are unable to accept Mr Syed's submissions that the High Court had erred in upholding the order of the learned trial Judge when the entire cause of action in respect of the offence had allegedly arisen outside the State of Gujarat. We are also unable to accept the submission that it was for the investigating officer in the course of the investigation to decide whether a particular court had jurisdiction to entertain a complaint or not.

30. It is the settled law that the complaint made in a criminal case follows the place where the cause arises, but the distinguishing feature in the instant case is that the stage of taking cognizance was yet to arrive. The investigating agency was required to place the facts elicited during the investigation before the court in order to enable the court to come to a conclusion as to whether it had jurisdiction to entertain the complaint or not. Without conducting such an investigation, it was improper on the part of the investigating agency to forward its report with the observation that since the entire cause of action for the alleged offence had purportedly arisen in the city of Mumbai within the (2024:HHC:9847) State of Maharashtra, the investigation should be transferred to the police station concerned in Mumbai.

31. Section 156(3) CrPC contemplates a stage where the learned Magistrate is not convinced as to whether the process should issue on the facts disclosed in the complaint. Once the facts are received, it is for the Magistrate to decide his next course of action. In this case, there are materials to show that the appellant had filed his application for a loan with the Head Office of the Bank at Ahmedabad and that the processing and the sanction of the loan was also done in Ahmedabad which clearly indicates that the major part of the cause of action for the complaints arose within the jurisdiction of the Chief Metropolitan Magistrate, Ahmedabad. It was not, therefore, desirable on the part of the investigating agency to make an observation that it did not have territorial jurisdiction to proceed with the investigation, which was required to be transferred to the police station having jurisdiction to do so.

32. On the materials before him the learned Magistrate was fully justified in rejecting the final report submitted by the Economic Offences Wing, State CID (Crime) and to order a fresh investigation into the allegations made on behalf of the Bank. The High Court, therefore, did not commit any error in upholding the views expressed by the trial court. As mentioned hereinbefore, Section 181(4) CrPC deals with the court's powers to inquire into or try an offence of criminal misappropriation or a criminal breach of trust if the same has been committed or any part of the property, which is the subject of the offence, is received or retained within the local jurisdiction of the said court.

33. The various decisions cited by Mr Syed, and in particular the decision in Satvinder Kaur case [(1999) 8 SCC 728: 1999 SCC (Cri) 1503] provide an insight into the views held by the Supreme Court on the accepted position that the investigating officer was entitled to transfer an investigation to a police station having (2024:HHC:9847) jurisdiction to conduct the same. The said question is not in issue before us and as indicated hereinbefore, we are only required to consider whether the investigating officer in respect of an investigation undertaken under Section 156(3) CrPC can file a report stating that he had no jurisdiction to investigate into the complaint as the entire cause of action had arisen outside his jurisdiction despite there being material available to the contrary. The answer, in our view, is in negative and we are of the firm view that the powers vested in the investigating authorities, under Section 156(1) CrPC, did not restrict the jurisdiction of the investigating agency to investigate a complaint even if it did not have territorial jurisdiction to do so. Unlike in other cases, it was for the court to decide whether it had jurisdiction to entertain the complaint as and when the entire facts were placed before it."

21. Therefore, it is not permissible to quash the proceedings at this stage simply on the ground that the police did not have territorial jurisdiction to carry out the investigations.

22. Reference was made to the various documents annexed with the petition to submit that the allegations in the F.I.R. are not correct. It was laid down by the Hon'ble Supreme Court in MCD v. Ram Kishan Rohtagi, (1983) 1 SCC 1: 1983 SCC (Cri) 115, that the proceedings can be quashed if on the face of the complaint and the papers accompanying the same no (2024:HHC:9847) offence is constituted. It is not permissible to add or subtract anything. It was observed:

"10. It is, therefore, manifestly clear that proceedings against an accused in the initial stages can be quashed only if on the face of the complaint or the papers accompanying the same, no offence is constituted. In other words, the test is that taking the allegations and the complaint as they are, without adding or subtracting anything, if no offence is made out then the High Court will be justified in quashing the proceedings in exercise of its powers under Section 482 of the present Code."

23. Madras High Court also held in *Ganga Bai v.*

Shriram, 1990 SCC OnLine MP 213; ILR 1992 MP 964; 1991 Cri LJ 2018, that the fresh evidence is not permissible or desirable in the proceeding under Section 482 of Cr.P.C. It was observed:

"Proceedings under Section 482, Cr.P.C. cannot be allowed to be converted into a full-dressed trial. Shri Maheshwari filed a photostate copy of an order dated 28.7.1983, passed in Criminal Case No. 1005 of 1977, to which the present petitioner was not a party. Fresh evidence at this stage is neither permissible nor desirable. The respondent by filing this document is virtually introducing additional evidence, which is not the object of Section 482, Cr.P.C."

24. Andhra Pradesh High Court also took a similar view in *Bharat Metal Box Company Limited, Hyderabad and Others vs. G. K. Strips Private Limited* and another, 2004 STPL 43 AP, and held:

(2024:HHC:9847) "9. This Court can only look into the complaint and the documents filed along with it and the sworn statements of the witnesses if any recorded. While judging the correctness of the proceedings, it cannot look into the documents, which are not filed before the lower Court.

Section 482 Cr.PC debars the Court to look into fresh documents, in view of the principles laid down by the Supreme Court in *State of Karnataka v. M. Devendrappa* and another, 2002 (1) Supreme 192. The relevant portion of the said judgment reads as follows:

"The complaint has to be read as a whole. If it appears that on consideration of the allegations, in the light of the statement made on oath of the complainant that the ingredients of the offence or offences are disclosed and there is no material to show that the complaint is mala fide, frivolous or vexatious, in that event there would be no justification for interference by the High Court. When information is lodged at the Police Station and an offence is registered, then the mala fides of the informant would be of secondary importance. It is the material collected during the investigation and evidence led in Court, which decides the fate of the accused person. The allegations of mala fides against the informant are of no consequence and cannot by itself be the basis for quashing the proceedings".

25. A similar view was taken in *Mahendra K.C. v.*

State of Karnataka, (2022) 2 SCC 129: (2022) 1 SCC (Cri) 401 wherein it was observed at page 142:

"16. ... the test to be applied is whether the allegations in the complaint as they stand, without adding or detracting from the complaint, prima facie establish the ingredients of the offence alleged. At this stage, the High Court cannot test the veracity of the allegations (2024:HHC:9847) nor for that matter can it proceed in the manner that a judge conducting a trial would, based on the evidence collected during the course of the trial."

26. This position was reiterated in Supriya Jain v. State of Haryana, (2023) 7 SCC 711: 2023 SCC OnLine SC 765 wherein it was held:

13. All these documents which the petitioner seeks to rely on, if genuine, could be helpful for her defence at the trial but the same are not material at the stage of deciding whether quashing as prayed for by her before the High Court was warranted or not. We, therefore, see no reason to place any reliance on these three documents.

27. A similar view was taken in Iveco Magirus Brandschutztechnik GMBH v. Nirmal Kishore Bhartiya, (2024) 2 SCC 86: (2024) 1 SCC (Cri) 512: 2023 SCC OnLine SC 1258, wherein it was observed:

"63. Adverting to the aspect of the exercise of jurisdiction by the High Courts under Section 482CrPC, in a case where the offence of defamation is claimed by the accused to have not been committed based on any of the Exceptions and a prayer for quashing is made, the law seems to be well settled that the High Courts can go no further and enlarge the scope of inquiry if the accused seeks to rely on materials which were not there before the Magistrate. This is based on the simple proposition that what the Magistrate could not do, the High Courts may not do. We may not be understood to undermine the High Courts' powers saved by Section 482CrPC; such powers are always available to be exercised ex debito justitiae i.e. to do real and substantial (2024:HHC:9847) justice for the administration of which alone the High Courts exist. However, the tests laid down for quashing an FIR or criminal proceedings arising from a police report by the High Courts in the exercise of jurisdiction under Section 482CrPC not being substantially different from the tests laid down for quashing a process issued under Section 204 read with Section 200, the High Courts on recording due satisfaction are empowered to interfere if on a reading of the complaint, the substance of statements on oath of the complainant and the witness, if any, and documentary evidence as produced, no offence is made out and that proceedings, if allowed to continue, would amount to an abuse of the legal process. This too, would be impermissible if the justice of a given case does not overwhelmingly so demand." (Emphasis supplied)

28. Therefore, it is not permissible to look into the material filed by the petitioners with the petition and the Court has to rely upon the material brought upon the record during investigation.

29. It was submitted that the allegations in the FIR are false and the informant had taken the money from her husband. This Court cannot determine the truthfulness or falsity of the allegations because it is a matter of trial to be adjudicated by the learned Trial Court where the matter is pending. This position was laid down in *Maneesha Yadav v.*

State of U.P., 2024 SCC OnLine SC 643 wherein it was held: -

(2024:HHC:9847) "13. As has already been observed hereinabove, the Court would not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint at the stage of quashing of the proceedings under Section 482 Cr. P.C. However, the allegations made in the FIR/complaint, if taken at its face value, must disclose the commission of an offence and make out a case against the accused. At the cost of repetition, in the present case, the allegations made in the FIR/complaint even if taken at its face value, do not disclose the commission of an offence or make out a case against the accused. We are of the considered view that the present case would fall under Category-3 of the categories enumerated by this Court in the case of *Bhajan Lal (supra)*.

14. We may gainfully refer to the observations of this Court in the case of *Anand Kumar Mohatta v. State (NCT of Delhi), Department of Home (2019) 11 SCC 706: 2018 INSC 1060:*

"14. First, we would like to deal with the submission of the learned Senior Counsel for Respondent 2 that once the charge sheet is filed, the petition for quashing of FIR is untenable. We do not see any merit in this submission, keeping in mind the position of this Court in *Joseph Salvaraj A. v. State of Gujarat [Joseph Salvaraj A. v. State of Gujarat, (2011) 7 SCC 59: (2011) 3 SCC (Cri) 23]*. In *Joseph Salvaraj A. [Joseph Salvaraj A. v. State of Gujarat, (2011) 7 SCC 59: (2011) 3 SCC (Cri) 23]*, this Court while deciding the question of whether the High Court could entertain the Section 482 petition for quashing of FIR when the charge-sheet was filed by the police during the pendency of the Section 482 petition, observed :

(SCC p. 63, para 16) (2024:HHC:9847) "16. Thus, the general conspectus of the various sections under which the appellant is being charged and is to be prosecuted would show that the same are not made out even prima facie from the complainant's FIR. Even if the charge sheet had been filed, the learned Single Judge [*Joseph Saivaraj A. v. State of Gujarat, 2007 SCC OnLine Guj 365*] could have still examined whether the offences alleged to have been committed by the appellant were prima facie made out from the complainant's FIR, charge-

sheet, documents, etc. or not."

30. Hence, it is not permissible for the Court to go into the truthfulness or otherwise of the allegations made in the FIR.

31. It was submitted that the vague allegations were made in the FIR. There is a force in the submission of Mr. Harish Chabra, learned counsel for the respondent that FIR is not an encyclopedia of the events. The informant has given a detailed statement under Section 161 of Cr.P.C. in which she has mentioned the details of the incident with specific particulars. The allegations in the FIR have to be read with the contents of the charge sheet (please see Somjeet Mallick versus State of Jharkhand 2024 INSC, para 16 to 19) and the FIR cannot be quashed at this stage on the ground that it does not disclose (2024:HHC:9847) the complete allegations and the judgment of Kahkashan Kausar (supra) does not apply to the present case.

32. A charge sheet has been filed before the Court.

The learned Trial Court is seized of the matter. It was laid down by the Hon'ble Supreme Court in Iqbal v. State of U.P., (2023) 8 SCC 734: 2023 SCC OnLine SC 949 that when the charge sheet has been filed, learned Trial Court should be left to appreciate the same. It was observed:

"At the same time, we also take notice of the fact that the investigation has been completed and charge- sheet is ready to be filed. Although the allegations levelled in the FIR do not inspire any confidence particularly in the absence of any specific date, time, etc. of the alleged offences, we are of the view that the appellants should prefer a discharge application before the trial court under Section 227 of the Code of Criminal Procedure (CrPC). We say so because even according to the State, the investigation is over and the charge sheet is ready to be filed before the competent court. In such circumstances, the trial court should be allowed to look into the materials which the investigating officer might have collected forming part of the charge sheet. If any such discharge application is filed, the trial court shall look into the materials and take a call whether any discharge case is made out or not."

33. The allegations in the FIR and charge sheet show that the petitioners had harassed the informant for bringing insufficient dowry, they demanded money from her and (2024:HHC:9847) turned her out of her matrimonial home on failure to meet the demand. These allegations show the commission of cognizable offence and the FIR cannot be quashed while exercising jurisdiction under Section 482 of Cr.P.C.

34. No other point was urged.

35. In view of the above, the present petition fails and the same is dismissed.

36. The observation made here-in-above shall remain confined to the disposal of the petition and will have no bearing, whatsoever, on the merits of the case.

(Rakesh Kainthla) Judge 17th October, 2024 (Nikita)